

23GDCV00580 23GDCV00580

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-07

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Case Number: 23GDCV00580 Hearing Date: August 7, 2026 Dept: E

Case No:1 23GDCV00580

Hearing Date: 8/7/2026 – 10:30 a.m.

Trial Date: UNSET

Case Name: RECONSTRUCTION EXPERTS

[TENTATIVE RULING]

There are six motions on calendar for 8/7/2026. Those motions are indicated as follows:

Motion 1 [Res. I.D. # 4526] – Cross-Defendant's (Reconstruction Experts, Inc.) demurrer to Cross-Complainant's (The Excelsior at the Americana at Brand Homeowners' Association) Verified Third Amended Cross-Complaint.

Motion 2 [Res. I.D. # 5764] – Cross-Defendants' (Johns Lyng USA, LLC and Johns Lyng California LLC) demurrer to Cross-Complainant's (The Excelsior at the Americana at Brand Homeowners' Association) Verified Third Amended Cross-Complaint.

Motion 3 [Res. I.D. # 1698] – Cross-Complainant's (The Excelsior at the Americana at Brand Homeowners' Association) motion for leave to file a Fourth Amended Cross-Complaint.

Motion 4 [Res. I.D. # 1961] – Plaintiff's (Reconstruction Experts, Inc.) motion for leave to file a Second Amended Complaint.

Motion 5 [Res. I.D. # 4613] – Plaintiff/Cross-Defendant's (Reconstruction Experts, Inc.) motion to relate and consolidate two pending Los Angeles Superior Court cases for all purposes, including discovery and trial: (1) Case No. 23GDCV00580 captioned as Reconstruction Experts, Inc. v. the Excelsior at the Americana at Brand Homeowners' Association (the "Main Action"); and (2) Case No. 25NNCV07778 captioned as DTF Management & Consulting, LLC dba Din Tai Fung v. Reconstruction Experts, Inc. (the "DTF Action").

Motion 6 [Res. I.D. # 8148] - Reconstruction Experts, Inc.'s ("RE") motion for an order extending RE's deadline to apply for entry of default judgment against Cross-Defendants Richard Delgado dba Lions Demolition ("Lions") and Nu Flow America,

Inc. dba Specialized Pipe Technologies ("Nu Flow") up to and including 45 days following the conclusion of trial.

Here, the Court plans to GRANT Motions 3 and 4.

Both parties appear to comply with CCP § 473(a)(1) and CRC, Rule 3.1324(a)-(b). "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (City of Torrance v. Southern California Edison Company (2021) 61 Cal.App.5th 1071, 1091 citing Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "If there is any reasonable possibility that plaintiff can state a good cause of action, it is error and an abuse of discretion to sustain the demurrer without leave to amend." (City of Torrance v. Southern California Edison Company (2021) 61 Cal.App.5th 1071, 1091 citing Campaign for Quality Education v. State of California (2016) 246 Cal.App.4th 896, 904.)

In light of the Court GRANTING Motions 3 and 4, the Court finds Motions 1 and 2 to be MOOT.

The Court to hear argument on Motions 5 & 6.

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Reconstruction Expert's motion to relate and consolidate cases , which appears to be unopposed, GRANTED.

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The Court has reviewed the

parties' positions regarding whether the Court should stay this matter pending

appeal or schedule a trial date. The Court's inclination is to set a

trial date.

The Court tends to agree with

the Excelsior defendants that the appeal of the sixth cause of action does not

require the stay of the entire action under CCP § 916.

The Court's further

inclination is to set a trial date far enough out so that the current appeal

will hopefully be resolved before the trial date. The Court does not

intend to bifurcate claims, if the lien claims are in fact reinstated by the

appellate court.

In the meantime, it appears

that the parties can continue with discovery and preparing for trial.

The Court

will hear from counsel.

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